

Scaling Up Workshop License and Delivery Agreement

This Workshop License and Delivery Agreement (“Agreement”) is entered into by and between Scaling Up Network LLC, a Delaware limited liability company (“Scaling Up” or “Company”), and the undersigned Scaling Up Coach (“Coach”). This Agreement governs the Coach’s licensing, use, delivery, marketing, and handling of Scaling Up workshop content and related materials.

1. Definitions

1.1 “Workshop Materials” means all content developed, owned, or licensed by Scaling Up and/or its Contributors, including but not limited to presentations, videos, worksheets, manuals, assessments, tools, templates, exercises, branding elements, logos, and proprietary processes.

1.2 “Contributor Materials” means materials created by third-party partners, thought leaders, or coaches and licensed to Scaling Up.

1.3 “Approved Providers” means third-party partners whose offerings or products are integrated into the Workshop Materials and listed in Appendix A.

1.4 “Public Release” means intentional publication of materials made freely available to the public.

1.5 “Gross Revenue” means all workshop-related revenue collected by the Coach and/or Scaling Up without deductions.

1.6 “Branding Standards” means Scaling Up’s guidelines for logo placement, formatting, and representations.

1.7 “Participant Data” means registration data, attendance data, and follow-up information provided or collected.

1.8 “Client Leads” means leads generated by the marketing of the workshops and/or the delivery of the workshop. These leads are eligible for referral commissions from the Coach to Scaling Up.

2. Ownership of Intellectual Property

2.1 Scaling Up and its Contributors retain all rights, title, and interest in and to the Workshop Materials and Contributor Materials.

2.2 No ownership rights are transferred to the Coach.

2.3 Coach agrees not to remove, obscure, alter, or reposition any copyright, trademark, contributor, or attribution notices.

3. License Grant and Use Restrictions

3.1 While the Coach remains an active Scaling Up Coach in good standing, Scaling Up grants a limited, non-exclusive, non-transferable license to deliver workshops using the Workshop Materials.

3.2 Workshops must always be delivered as Scaling Up workshops and never under another brand or coaching system.

3.3 Coach may add their logo and bio only in approved locations. No other modifications are permitted without prior consent in writing from Scaling Up.

3.4 Coach may deliver workshops and/or use the workshop content directly with their clients or in a workshop setting subject to the terms of this agreement.

3.5 Coach agrees to maintain the original formatting and design of all materials.

3.6 Coach may use brief video clips for marketing but may not publish worksheets or proprietary content.

3.7 Coach agrees to use best efforts to market workshops within 100 miles/160 kilometers of their primary location but may deliver globally.

4. Revenue Share, Payments, and Reporting

4.1 Scaling Up shall receive 25% of Gross Revenue from each workshop delivered to a group or to an individual client by the Coach.

4.2 If revenues are collected by the coach, the payments from the Coach are due to Scaling Up immediately upon collection from the client when collected. Payments to the Coach are credited to their next Membership payment. If the fees exceed their Membership dues, then Scaling Up shall pay the coach immediately upon workshop execution.

4.3 Commissions received from Approved Providers will be shared with the Coach as outlined in Appendix A.

4.4 Should the Coach replace an Approved Provider with a third-party equivalent provider and there are revenues paid to the Coach, the revenue share obligations between the Coach and Scaling Up remain unchanged as outlined in Appendix A. For avoidance of doubt, should the Coach substitute one of the preferred providers with another equivalent partner the Coach agrees to share with Scaling Up 50% of any fees generated by these partners.

4.5 Reporting Requirements: Coach shall provide Scaling Up with:

- Full Participant registration information (name, company, title, email, phone, address).
- A list of actual attendees.
- A 90-day follow-up status report on each participant or prospect. Coach must notify Scaling Up of all client engagements secured and follow standard coach reporting protocols and revenue sharing.

4.6 Client Leads generated from the marketing of the workshop, the workshop materials and the workshop itself shall be considered Scaling Up Leads and therefore eligible for the 10% revenue sharing by the Coach to Scaling Up.

5. Confidentiality

Coach shall maintain confidentiality of all non-public Workshop Materials and Contributor Materials.

5.1 Coach may not publish these materials to the public other than approved workshop marketing materials. Materials may not be shared outside authorized participants or Scaling Up personnel.

5.2 Coach may not assign or transfer any rights granted under this Agreement, including access to or use of course materials, to any other individual, group, or organization. This prohibition includes, but is not limited to, sharing electronic files, slide decks, workbooks, or any other proprietary content with coaching groups or third parties. Only the Coach who completes the certification is authorized to use the materials. Scaling Up may assign its rights and obligations under this Agreement to its affiliates or successors without prior approval.

5.3 The terms of this workshop agreement, our partnerships, our revenue sharing agreements and other terms within this agreement are considered trade secrets, and confidential information.

6. Roles and Responsibilities

6.1 Responsibilities of Scaling Up

- Provide all Workshop Materials, including presentations, workbooks, videos, assessments, templates, and facilitation guides.
- Provide marketing assets, promotional copy, sample emails, graphics, and workshop descriptions.
- Scaling Up shall partner with the coach to promote the workshop within the Coach's designated geography as requested by the coach and final approval by Scaling Up. This promotion shall include email and social media marketing using standardized workshop content.
- Provide registration, automation systems, and pre-workshop participant communications.
- Maintain relationships with Approved Providers and distribute applicable commissions.
- Offer guidance, support, and content updates as required.
- Notify Coach in a reasonable timeframe of any required changes to content or delivery guidelines.
- Continue to nurture the leads gained from the registration list.

- Ensure partner obligations are communicated clearly to Coach and our partners as outlined in Appendix A.

6.2 Responsibilities of the Coach

- Post workshop marketing content on all active social media platforms on a regular basis leading up to the event or workshop.
- Promote workshops to all Coach customers and prospects in their CRM or mailing lists.
- Assist Scaling Up in identifying or securing local sponsorships when appropriate.
- Deliver workshops professionally and in alignment with Scaling Up methodologies and values.
- Use Scaling Up facilitation standards, timing, flow, and exercises without alteration to the workshop materials.
- Maintain a professional environment for live and virtual workshops.
- Not introduce competing or unrelated methodologies into workshops.
- Comply with all applicable privacy and data protection regulations (GDPR, CCPA, CAN-SPAM, etc.).
- Secure and transmit Participant Data in accordance with Scaling Up instructions.
- Ensure technology readiness for virtual workshops.
- Attend facilitator briefings and respond promptly to Scaling Up communications.
- Collect and share participant surveys, feedback, and follow-up data.
- Use only approved sponsorship partners or receive approval from Scaling Up before securing alternatives.
- Continue to nurture the leads gained from the registration list.
- Change Fees if the coach changes the date of the workshop.
 - For the processing and required changes to event setup, marketing emails/LinkedIn Campaigns and customer notices to guests, the coach will be charged a \$500 processing fee for all paid and free events.
 - New reschedule date must be 60 days (virtual) / 90 days (on-site) from the reschedule notification date.
- Cancellation Fees

- For the processing and required changes to event setup, marketing emails/LinkedIn Campaigns and customer notices to guests, the coach will be charged a \$500 processing fee for all paid and free events.
- If the change results in refunds to customers, the coach will be responsible for any costs over \$250 (i.e. credit card transaction fees and/or workbooks)
- If charges don't exceed \$250, then only the \$500 standard fee will apply.

7. Term and Termination

7.1 The Coach may use the workshop materials **only** as long as Coach is an active member of the Scaling Up network and in good standing. Should the Coach exit Scaling Up memberships, any and all privileges to use these materials are immediately rescinded.

7.2 Scaling Up may terminate immediately if the Coach:

- Shares materials with unauthorized parties.
- Modifies materials without approval.
- Removes or alters the trademark, copyright or other notices from the materials.
- Fails to pay revenue share from Preferred Partners or replacement partners.
- Delivers workshops under another brand.
- Violates Branding Standards.
- Misuses Workshop Materials or Contributor Materials.

7.3 Upon termination, Coach must:

- Immediately stop all workshop delivery.
- Delete all electronic copies and certify deletion.
- Remove all workshop references from websites and social media within 30 days.
- Not create derivative or plagiarized content from Scaling Up materials.

8. Indemnification

Coach shall indemnify and hold harmless Scaling Up against all claims arising from misuse of materials, unauthorized modifications, misrepresentation, breaches, revenue misreporting, or violations of partner requirements.

9. Limitation of Liability

Scaling Up's liability shall not exceed the total fees paid under this Agreement. Scaling Up is not liable for indirect, special, punitive, or consequential damages.

10. Governing Law and Venue

This Agreement is governed by the laws of the state of Delaware, United States. Disputes shall be resolved exclusively in Delaware courts.

11. Miscellaneous

11.1 This Agreement, including Appendix A, constitutes the entire understanding related to the workshop content and Scaling Up's workshop offerings.

11.2 Amendments must be in writing.

11.3 Notices are effective when sent electronically.

Appendix A – Workshop Specifications and Financial Terms

Workshop Name: Scaling Up to Finish Strong / Scaling Up Your Exit

This workshop is designed to help business owners understand all aspects of selling their business for maximum results.

Workshop revenue share

In exchange for the use of the Workshop materials and Scaling Up's assistance in the workshop facilitation and marketing efforts, Scaling Up shall receive 25% of revenues generated by the workshop content with all remaining revenues generated going to the coach. This revenue share is applicable to individual company workshops or group workshops.

Partner list and approved providers:

- Cornerstone Business Services
- Cornerstone International Alliance members
- STS Capital
- Schechter Investments

* Additional partners will be added periodically.

Revenue share details for Partners:

Coach and Scaling Up Network shall split the commission 50/50 from these partners and future partnerships that we secure on behalf of Scaling Up and the Coach community.

Revenue Sharing Splits:

Any traditional Scaling Up coaching engagements derived from the attendees of the workshops will result in the customary 10% revenue share due to Scaling Up as stated in the Coach's Contract.

Existing Coach clients that attend the workshops are excluded from the 10% revenue share.